

# In The Chancery Court of Lafayette County Mississippi

2022 JUN -2 P 1:32

CHANCERY CLERK

Cause Number CV2021-691

RE: The Matter of Matthew Reardon

BY DC

*TS*

## Motion to Vacate Judgment Under MRCP Rule 60(b)

Comes now your Respondent, Matthew Oliver Reardon, whom raises to this court manifest error requiring the reversal and vacating of this matter which stands before it. In doing so raises his arguments in favor:

### Mississippi Rules of Civil Procedure Rule 60 - Relief from Judgment or Order

#### (b) Mistakes; Inadvertence; Newly Discovered Evidence; Fraud, etc <sup>1</sup>

- (1) fraud, misrepresentation, or other misconduct of an adverse party;
- (4) the judgment is void <sup>2</sup>
- (5) the judgment has been satisfied, released, or discharged, or a prior judgment upon which it is based has been reversed or otherwise vacated, or it is no longer equitable that the judgment should have prospective application
- (6) any other reason justifying relief from the judgment.

#### Background of Case in Chief

The respondent suffered irreparable injury sustained from two separate extended stay commitment orders signed by this court and occurring just over two months apart from one commitment to the next. On both matters' respondent has asserted claims that he was denied due process through deprivation of key rights which would guarantee a fair hearing on the first commitment. This would include a complete refusal to conduct a hearing in general on the second commitment process just 63 days later despite multiple requests

<sup>1</sup> *When ruling upon a Rule 60(b) motion, the trial court should balance the litigant's interest in a resolution on the merits of the motion with the desire to achieve finality in litigation. See Stringfellow v. Stringfellow, 451 So. 2d 219, 221 (Miss. 1984).*

<sup>2</sup> *A judgment is void if the trial court lacked jurisdiction over the subject matter or the parties or acted in a manner inconsistent with due process of law. See Bryant, Inc. v. Walters, 493 So. 2d 933, 938 (Miss. 1986).*

made and despite open allegations that not only one, but both commitment proceedings were instituted with malice by false claims given along with claims of the proceedings being initiated as a way of both suppressing information and retaliating against Respondent. This amounts to fully depriving the respondent of his Liberty without due process of law being afforded, a violation of Article 3 Sections 14, 24, 25, 26, and 26-A of the Mississippi Constitution and the 4<sup>th</sup> and 5<sup>th</sup> amendments to the Federal Constitution.

- 1) The matter at hand begins on December 3<sup>rd</sup>, 2021 when Respondent filed a Cover Page in Lafayette County Circuit Court under Cause number L21-494 indicating he was appealing a criminal matter from Lafayette County Justice Court. With it Respondent filed a 12-page motion seeking an amended judgement or for the matter to be declared void due to evidence being introduced at trial that would go to proving that Lafayette County Sheriff's Deputies gave perjured testimony on stand at trial that had gone uncorrected by the prosecutor, thus the trial and subsequent judgement was without due process and subject to collateral attack.
- 2) At that time and on that day, Court Clerk Chyna Sinervo advised Respondent that his newly assigned case was assigned by algorithm at random to Judge Kent Smith. This interaction was recorded and preserved and will be presented to this court should this court request it as being relevant for validation.
- 3) On Monday, December 6, 2021 Respondent proceeded to Circuit Court upon realizing that his newly filed matter three days prior now reflected Judge John Kelly Luther as the assigned judge on the matter. Respondent simply tried to ascertain how this record could have been changed and who could have changed it when Circuit Court Clerk Jeff Busby got highly defensive and advised his staff not to answer any further questions.

- 4) Busby then communicates out to the Lafayette County Sheriff Joey East in an attempt to rid the Respondent from Circuit Court/Circuit Clerks Office. The Sheriff then pulls up minutes later, orders Respondent not to go back into Circuit Court unless he has something to file.
- 5) The very next day, December 7<sup>th</sup>, 2021 upon Respondent, his wife, and his stepchild arriving at home from a Doctors Appointment around 5pm, Lafayette County Sheriff's Deputies simultaneously arrive to take Respondent into custody for the signed affidavit for commitment signed by Communicare and executed by this court.
- 6) The signed Affidavit stated Respondent would "Go into Public Places Recording people, Paranoid and Delusional, Provoking people with his minor child, not taking meds, and not getting Medical Help.
- 7) On December 9<sup>th</sup>, 2021 Respondent (after receiving far from thorough/fair evaluations by Communicare Staff and assigned staff by Lafayette County Chancery Court) was committed to the North Mississippi State Hospital Tupelo Crisis Unit where he would stay deprived of his liberty until December 23<sup>rd</sup>, 2021.
- 8) Upon being discharged, Respondent condemned the Commitment, referring to it as Fraudulent in nature particularly referencing to the reasons stated on the Affidavit NOT supported by any named witness, along with the fact that the Commitment proceedings were initiated the very next day after attempting to find answers to the erroneous altering of records in Circuit Court.
- 9) Respondent would find out via phone call with Communicare Supervisor Rachel Alcorn on or around 12/30/2021 that the source of her information attested to on affidavit stemmed from Lafayette



County Sheriffs Department and in particular Sheriff East, yet she never listed out any witness on her affidavit, in essence falsely stating claims on sworn affidavit she had absolutely no clue about.

- 10) In response to the first commitment proceedings filed and executed on December 7<sup>th</sup>, 2021 and at the advisement of Communicare employee, Susan Beard, Respondent filed an 8-page formal grievance with the chancery court of Lafayette County, detailing out violations of state law and Federal Case Law, and Respondent served this letter on Judge Little's chambers and Communicare Executive Director Dr Sandy Rogers on February 7<sup>th</sup>, 2022 at approximately 3pm.
- 11) Just 2-days following this letter Susan Beard decided to file a second Affidavit for Commitment citing noncompliance with outpatient treatment stating Respondent refused to attend an appointment, but this simply was not the case as respondent was awaiting response to the formal complaint/grievance he had properly served prior to proceeding further.
- 12) On February 10, 2022 around Midnight, Lafayette County Sheriff's Department again pulled into Respondent's Driveway with blue lights on to take Respondent into custody without order or affidavit in hand for preservation at the time asked, requiring a separate deputy to present the signed order and affidavit.
- 13) This caused Respondent's wife to go into pre-term labor and delivering a child at 28 weeks gestational age on February 17, 2022.
- 14) Respondent requested a hearing since the moment he was taken into custody for the writ of commitment executed on February 10<sup>th</sup>, 2022 and each time he asked for a hearing Respondent was advised that he was not entitled to receive a hearing, although a single page had already been marked that respondent did receive an in-person hearing, when that simply never was the case.

- 15) Not only were these statements amount to a fundamental deprivation of Due Process Rights guaranteed to all Private Citizens, but a direct violation of State Law in that Respondent was indeed entitled to a hearing pursuant to **MS § 41-21-71, MS § 41-21-73, and MS § 41-21-74 within the first 10-days' time**, yet this was completely overlooked and never adhered to.
- 16) MS § 41-21-67 states when the affidavit fails to set forth factual allegations and witnesses sufficient to support the need for treatment, the chancellor shall refuse to direct issuance of the writ. This is not a choice of the court, rather it is an obligation of the court.
- 17) MS § 41-21-71 states if the respondent is determined to be in need of mental health treatment, the clerk shall immediately set the matter for hearing. The hearing shall be set within seven (7) days of the filing of the certificates unless an extension is requested by the respondent's attorney. In no event shall the hearing be more than ten (10) days after the filing of the certificates. Affording the Respondent a hearing is not discretionary. It is a requirement, and it is a requirement of Due Process to all citizens prior to the deprivation of their liberty.
- 18) Further elaborating on this topic, MS § 41-21-73 (2) states "The respondent must be present at the hearing unless the chancellor determines that the respondent is unable to attend and makes that determination and the reasons therefor part of the record". Further, the court, at the time of the hearing, shall be presented a record of all drugs, medication or other treatment that the respondent has received pending the hearing, unless the court determines that such a record would be impractical and documents the reasons for that determination.

- 19) This Documentation was never provided and notated in the record as nobody seemed to know what medication respondent was initially prescribed, yet had no problem stating that Respondent wasn't taking his medication.
- 20) Ironically, the doctor in charge at the East Mississippi State Hospital remained under the impression for the entire time leading up to discharge that Respondent had been misdiagnosed before and in fact was not requiring of medication, one of the primary reasons Respondent was committed in December of 2021.
- 21) MS § 41-21-73 (3) states "The respondent shall have the right to offer evidence, to be confronted with the witnesses against him and to cross-examine them and shall have the privilege against self-incrimination. The rules of evidence applicable in other judicial proceedings in this state shall be followed. A representative from a treatment facility shall be present at the hearing to explain possible treatment options to the respondent". Yet none of MS § 41-21-73 (3) held applicable to these proceedings as Respondent was never given the right to offer evidence, be confronted with witnesses against him, and to cross-examine them. Further no representative from a treatment facility was present at the hearing to explain possible treatment options to the respondent."
- 22) MS § 41-21-73 (4) Treatment before admission to a state-operated facility shall be located as closely as possible to the patient's county of residence and the county of residence shall be responsible for that cost. Admissions to state-operated facilities shall be in compliance with the catchment areas established by the State Department of Mental Health.
- 23) The Catchment area for Lafayette County, MS is the North Mississippi State Hospital in Tupelo, MS, NOT the East Mississippi State Hospital in Meridian, MS.



- 24) MS § 41-21-74 (3) states "The respondent may be returned to the treatment facility as soon thereafter as facilities are available. The respondent may request a hearing within ten (10) days of his return to the treatment facility."
- 25) This once again was not the case as Respondent continued to be advised that he did not have the right to a hearing until after 21 days stay at a state hospital facility. A hearing within 10-days would have made a tremendous difference in Respondent being able to add clarity to the situation, and to be by his wife's side to assist after the extremely premature birth of their son.
- 26) MS § 41-21-74 (4) states "An outpatient shall not have or be charged for a recommitment process within a period of twelve (12) months of the initial outpatient order." Respondent understands this for the way it reads. There may not be another recommitment process within 12 months of the initial commitment, however back to back commitments occurred within 63 days of each other.
- 27) Finally, MS § 41-21-104 states among others listed below that "The person subject to commitment must be afforded the due process to which he or she is entitled under Chapters 21 and 31 of Title 41, Mississippi Code of 1972"
- 28) "To deprive any citizens of his or her liberty upon the altruistic theory that the confinement is for humane therapeutic reasons and then fail to provide adequate treatment violates the very fundamentals of due process." Wyatt v. Stickney, 325 F. Supp. 785
- 29) As a result of all listed violations by the affiant, this court, and Lafayette County, Respondent has incurred substantial financial burden, and respondent's newborn child has been ailing in health more recently being transferred to LeBonheur Children's Hospital in Memphis TN due to his lungs not developing from being born as premature as he unfortunately was.

30) The trial court has discretion to grant or deny a Rule 60(b) motion, unless the judgment is void, in which case the court is required to set aside the judgment. See *Sartain v. White*, 588 So. 2d 204, 211 (Miss. 1991). *A judgment is void if the trial court lacked jurisdiction over the subject matter or the parties or acted in a manner inconsistent with due process of law. See Bryant, Inc. v. Walters*, 493 So. 2d 933, 938 (Miss. 1986).

## VIOLATIONS OF MS CODE REGARDING INVOLUNTARY COMMITMENT

**MS § 41-21-67 (1)** states *“The order may provide where the person shall be held before being taken for pre-evaluation screening and treatment. However, when the affidavit fails to set forth factual allegations and witnesses sufficient to support the need for treatment, the chancellor shall refuse to direct issuance of the writ. Reapplication may be made to the chancellor.”*

**MS § 41-21-71** states *“If the chancellor or chancery clerk finds, based upon the appointed examiners' certificates and any other relevant evidence, that the respondent is in need of treatment and the certificates are filed with the chancery clerk within forty-eight (48) hours after the order for examination, or extension of that time as provided in Section 41-21-69, the clerk shall immediately set the matter for a hearing. The hearing shall be set within seven (7) days of the filing of the certificates unless an extension is requested by the respondent's attorney. In no event shall hearing be more than ten days after the filing of certificates.”*

**MS § 41-21-73 (2)** states *“The respondent must be present at the hearing unless the chancellor determines that the respondent is unable to attend and makes that determination and the reasons therefor part of the record. At the time of the hearing, the respondent shall not be so under the influence or suffering from the effects of drugs, medication or other treatment so as to be hampered in participating in the proceedings. The court, at the time of the hearing, shall be presented a record of all drugs, medication or other treatment that the respondent has received pending the hearing, unless the court determines that such a record would be impractical and documents the reasons for that determination.”*

**MS § 41-21-73 (3)** states *“The respondent shall have the right to offer evidence, to be confronted with the witnesses against him and to cross-examine them and shall have the privilege against self-incrimination. The rules of evidence applicable in other judicial proceedings in this state shall be followed. A representative from a treatment facility shall be present at the hearing to explain possible treatment options to the respondent.”*



**MS § 41-21-73 (4) states** *"If the court finds by clear and convincing evidence that the proposed patient is a person with mental illness or a person with an intellectual disability and, if after careful consideration of reasonable alternative dispositions, including, but not limited to, dismissal of the proceedings, the court finds that there is no suitable alternative to judicial commitment, the court shall commit the patient for treatment in the least restrictive treatment facility that can meet the patient's treatment needs. Treatment before admission to a state-operated facility shall be located as closely as possible to the patient's county of residence and the county of residence shall be responsible for that cost. Admissions to state-operated facilities shall be in compliance with the catchment areas established by the State Department of Mental Health."*

**MS § 41-21-74 (3) states** *"The respondent may be returned to the treatment facility as soon thereafter as facilities are available. The respondent may request a hearing within ten (10) days of his return to the treatment facility."*

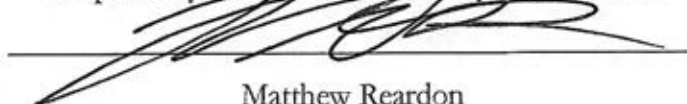
**MS § 41-21-74 (4) states** *"The chancery court of the county where the public facility is located, or the committing court shall have jurisdiction over matters concerning outpatient commitments when such an order is sought subsequent to an inpatient course of treatment pursuant to Sections 41-21-61 through 41-21-107, 43-21-611, 99-13-7 and 99-13-9. An outpatient shall not have or be charged for a recommitment process within a period of twelve (12) months of the initial outpatient order."*

**MS § 41-21-104 states** *"The court shall have continuing jurisdiction over a person committed to an inpatient or outpatient treatment program under this chapter for one (1) year after completion of the treatment program. During that time, the court, upon affidavit in the same cause of action, may conduct a hearing consistent with this chapter or Title 41, Chapter 31, Mississippi Code of 1972, to determine whether the person needs to be recommitted for further mental health treatment or to determine whether the person is in need of alcohol and drug treatment. Upon a finding by the court that the person is in need of further treatment, the court may commit the person to an appropriate treatment facility. **The person subject to commitment must be afforded the due process to which he or she is entitled under Chapters 21 and 31 of Title 41, Mississippi Code of 1972.** This section may not be construed so as to conflict with the provisions of Section 41-21-87."*

WHEREFORE ALL PREMISES CONSIDERED

Respondent prays that this court vacate its Judgement entered in this cause or in the alternative to hold a hearing to examine all named facts and grievances stated within. Respondent also prays for any other relief both special or general to which he may be entitled for having to bring this cause.

Respectfully Submitted this 2<sup>nd</sup> Day of June 2022



Matthew Reardon  
Respondent (pro se)



February 7th, 2022

Via Email Only

Dr Sandy Rogers  
Executive Director of  
Communicare 152 MS-7  
Oxford, MS 38655

CC: Chancellor Lawrence Little  
Presiding Judge over Involuntary Commitment  
Lafayette County Chancery Court

**RE: Fraudulent Involuntary Judicial Commitment Stemming from False Information**

**URGENT NOTICE PROVIDED. PLEASE TAKE APPROPRIATE ACTION**

**Dear Dr Rogers,**

Between the date of December 6, 2021 and December 7, 2021 an employee of Communicare by the name of Rachel Alcorn came in receipt of inaccurate, untrue, and defamatory information given to her by Lafayette County Sheriff's Department which she acknowledged had been sourced by the Lafayette County Sheriff, Joey East himself. This in turn set off a series of events to follow, which in turn brought about irreparable injury while hindering the due course of justice and as a result broadened the scope of all which currently transpires. In the interest of transparency into all of this, I'd like to make it known that this entire fiasco was created based upon the fact that for the second time in approximately one year's time, I had discovered an important record that was fraudulently altered in Lafayette County Circuit Court. Finding out how this record could have changed and who could be responsible for changing it was and still is two very important questions to me as the same thing has happened now on both currently open filed matters of mine in Lafayette County Circuit Court. To make matters even worse, I have Identified numerous pieces of inaccurate information reported by another employee of Communicare by the name of Stacey Waites whom conducted the intake at the Lafayette County Detention Center on December 8th, 2021. Then there is the absolutely bizarre notation and reasoning by the Doctor and Nurse Practitioner via remote video conference which when combined with the facts and all other erroneous and obnoxious matters at hand lead me to believing that everything that transpired was the result of heavily politicized persecution for me having the drive and focus that I have on all current ongoing legal matters I am involved in. Particularly when this Doctor notated on his report that I was "very preoccupied with ongoing legal cases" and described my condition as



Bipolar with "delusions" in his report recommending in-patient commitment. To fault me for being pre-occupied with ongoing legal cases is absolutely ludicrous when factoring in that I am having to perform the work of an attorney due to not being able to afford the monumental costs an attorney would charge to represent me in two supreme court appeals, two circuit court matters, a chancery court matter, a recently wrapped up Justice Court matter, and at a bare minimum now one pending District Court Matter. Being "pre-occupied with ongoing legal cases" should be fully expected of anyone currently engaged in multiple legal battles in multiple venues such as I am, particularly when that individual happens to be representing himself in seeking full vindication from a complete miscarriage of justice that transpired in 2017 which continues to be exacerbated through continued lies tendered by Lafayette County Officials and in particular Sheriff East whom in fact played a hand in all that has occurred dating back to May of 2017. Contrary to the opinion of this Doctor and your staff whom never fact checked anything, the claims I have made and produced a plethora of evidence supporting are not "Conspiracy Theories" or "Delusions", nor have I ever "Provoked anyone with my minor child" as the affidavit and reports following attested to. These are insinuations and character assassinations that Lafayette County and in particular its sheriff wanted to have conveyed which at least temporarily it was successful in doing through full exploitation of the State of Mississippi's mental health laws and through the assistance of your employees and contractors working on behalf of your organization at the expense of my rights and liberties. The negligent acts of your employees have sought to demonize lawful, authorized, and constitutionally protected activity through the pushing of a narrative that was distasteful and untrue.

I am an independent credentialed member of the press whom has taken on a role of investigating and reporting the corrupt acts demonstrated by this county while fully documenting my journey in seeking full vindication and my credentials have been on file with the County and Sheriffs Department, so this was no new occurrence or surprise. For your convenience I am attaching a copy to this letter so that they again are on file in one more place in this county. The most unfortunate consequence, however, is that employees of Communicare through not properly following policy and procedure as it relates to state and federal law have now directly aided and provided assistance to certain Lafayette County Officials and in particular Sheriff East in their attempt to "cover up" and abscond from their wrongful deeds. As a result of such I have lost all trust in your organization and its staff, and honestly who could blame me?

The State of Mississippi's Mental Health laws are outdated and I firmly believe that what has transpired here demonstrates the level of ease for the State and County Governments to exploit their own system, and through doing so have done a pristine job of exposing its major flaws. The process



for initiating Civil Commitment proceedings is detailed out in MS Code 41-21-65. In that it states:

If any person is alleged to be in need of treatment, any relative of the person, or any interested person, may make affidavit of that fact and shall file the Uniform Civil Commitment Affidavit with the clerk of the chancery court of the county in which the person alleged to be in need of treatment resides, but the chancellor or duly appointed special master may, in his or her discretion, hear the matter in the county in which the person may be found. The affidavit shall set forth the name and address of the proposed patient's nearest relatives and whether the proposed patient resides or has visitation rights with any minor children, if known, and the reasons for the affidavit. The affidavit must contain factual descriptions of the proposed patient's recent behavior, including a description of the behavior, where it occurred, and over what period of time it occurred, if known. Each factual allegation may be supported by observations of witnesses named in the affidavit.

The requirements in this simply were not met, nor were they ever justified. Not only was the Affidavit not supported by any named witnesses, but the entire procedure was botched by the affiant attesting under sworn affidavit to non-factual claims along with claims that were in fact constitutionally protected and ordained particularly for an independent credentialed member of the press in the performance of his duties, which the Lafayette County through its officials nor employees of Communicare had any such right to interfere with and hinder. Further, the affidavit and reports to follow were comprised of judgmental and conclusory statements that were untrue in nature and relied primarily upon information stemming from an outside party whom was never named as required under the above statute. Fortunately, in one measure of good faith, there is a listed imposition of penalties against false affidavits being filed in bad faith for a malicious purpose in that:

The prohibition against charging the affiant other fees, expenses, or costs shall not preclude the imposition of monetary criminal penalties under Section 41-21-107 or any other criminal statute, or the imposition by the chancellor of monetary penalties for contempt if the affiant is found to have filed an intentionally false affidavit or filed the affidavit in bad faith for a malicious purpose.

A State Law cannot be held constitutional if it directly infringes on established law on a Federal Level to include if that particular law/legislation deprives a citizen of any constitutional right or any guaranteed Due Process Right – to include Substantive in that a citizen is subjected to the undue deprivation of life, liberty, or property. A finding of "mental illness" alone cannot justify a State's locking a person up against his will and keeping him indefinitely in simple custodial confinement.

Assuming that that term can be given a reasonably precise content and that the "mentally ill" can be identified with reasonable accuracy, there is still no constitutional basis for confining such persons involuntarily if they are dangerous to no one and can live safely in freedom. The matter at hand was decided upon in *O'Connor vs Donaldson*, A Landmark US Supreme Court case, which Stated in short, a State cannot constitutionally confine without more a non-dangerous individual who is capable of surviving safely in freedom by himself or with the help of willing and responsible family members or friends. The question was then posed, may the State fence in the harmless mentally ill solely to save its citizens from exposure to those whose ways are different? One might as well ask if the State, to avoid public unease, could incarcerate all who are physically unattractive or socially eccentric. Mere public intolerance or animosity cannot constitutionally justify the deprivation of a person's physical liberty. See, e. g., *Cohen v. California*, 403 U.S. 15, 24 -26; *Coates v. City of Cincinnati*, 402 U.S. 611, 615; *Street v. New York*, 394 U.S. 576, 592; cf. *U.S. Dept. of Agriculture v. Moreno*, 413 U.S. 528, 534.

In conclusion, the flaws which occurred in this matter have not only violated the mental health laws established by the state of Mississippi, but have created a material breach of substantive due process rights guaranteed to all citizens and protected under federal law. As such, you are hereby requested to review and revise your current policies within the following 7 days in order to bring them into compliance with not only state law but federal law as well in order to circumvent a similar matter from occurring in the future and to provide in writing any offered changes to such policies. In addition, as stated above, please take appropriate action to produce and preserve any and all information associated with the incident below to include any information describing the incident below that is maintained by Communicare and/or any of its employees to include any individual subcontracted out. This preservation should include all audio recordings taken during intake. any documentation/notes taken, and any communication regarding the matter sent and/or received leading up to and including the final determination being made to involuntarily commit Matthew Reardon to a state hospital facility on December 9, 2021.



Matthew Reardon

[matt@mattreardon.com](mailto:matt@mattreardon.com)

662-205-6711

**Video Documenting all that occurred on December 6, 2021 along with supporting evidence may be viewed online:**

**[RIDINGWITHTHEOUTLAW.COM/A-FRAUDLENT-COMMITMENT](http://RIDINGWITHTHEOUTLAW.COM/A-FRAUDLENT-COMMITMENT)**

# PRESS ID

*Carte de Presse / Pase de Prensa / Presseausweis*

**Credentialed Reporter / Photographer**

Matthew Reardon

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**Is a Reporter / Photographer and a  
member in good standing with the  
Constitution First Amendment  
Press Association (CFAPA.org)**



**Issue Date:**

July 01, 2021

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Do not hinder, exclude, or block the view of this journalist in the exercise of the long-established and court-recognized 1st Amendment right to be present at and to photograph or film any event in any public place. See: *Perry Education Association v. Perry Local Educators' Association*. (1983)

1st Amendment: "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances." (Enacted by Congress on December 15, 1791.)

Any officer or public official who deprives another of their 1st Amendment rights is personally and departmentally subject to suit for civil damages for deprivation of rights. Per 42 U.S.C. § 1983, "every person" who under color of law deprives another person of his civil rights is liable for civil damages.) See: *Pierson v. Ray*, 386 U.S. 547 (1967) – a U.S. Supreme Court case. Also see: *Monell v. Department of Social Services*, wherein the U.S. Supreme Court held that municipalities and local governments can be sued if the action was attributable to an official policy.

Law enforcement officers, public officials, and public employees do not enjoy absolute immunity.

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IN THE CHANCERY COURT OF Lafayette COUNTY, MISSISSIPPI

IN RE: Matthew Reardon CAUSE NO. 2021-691 (L)  
18<sup>th</sup> STATE OF MISSISSIPPI  
LAFAYETTE JUDICIAL DISTRICT  
2021 DEC -7 P 4:10

UNIFORM COMMITMENT AFFIDAVIT UNDER MCA SECTION 41-21-65

COMES NOW Rachel Alcorn, relative and/or interested person, residing at  
Communicare BY telephone number 662-234-7521, duly sworn

and deposed, says the following to be true and correct to the best of my knowledge and belief:

Matthew Reardon is a person I allege to be in need of treatment by outpatient or inpatient commitment. To my knowledge this person DOES / DOES NOT (circle one) reside or have visitation rights with a minor child or children. Their nearest relative, if known, is \_\_\_\_\_ who resides at \_\_\_\_\_, telephone number \_\_\_\_\_. I allege the person to be in need of treatment because the person is mentally ill under law and poses a likelihood of physical harm to themselves or others as demonstrated by (mark as many as may apply) ☒ a recent attempt or threat to physically harm themselves or others and/or ☒ a failure and inability to provide necessary food, clothing, shelter, safety, or medical care to themselves as a result of the impairment and/or \_\_\_\_\_ based on treatment history or other relevant evidence, this person is in need of treatment to prevent further disability or deterioration which will predictably result in dangerousness to themselves or others when their current mental illness limits or negates their ability to make an informed decision to seek or comply with recommended treatment. To my knowledge the recent behavior described herein is not caused by any of the following: epilepsy; intellectual disability; brief periods of intoxication, dependence upon or addiction to alcohol or drugs; or senile dementia.

Factual descriptions of recent behavior, witnesses, and where and when it occurred, if known:  
go into public places recording people parinoid and delusional  
prodding people with his minor child, not taking meds  
and not getting medical help (attach additional pages if needed)

I HAVE / HAVE NOT (circle one) consulted with a Community Mental Health Center or a physician to determine whether the alleged acts by the proposed respondent warrant civil commitment in lieu of other less-restrictive treatment options.

SWORN TO AND SIGNED BY MY HAND this 7<sup>th</sup> day of December 2021 A.D.

Rachel Alcorn  
AFFIANT (relative and/or interested person)

SWORN TO AND SUBSCRIBED BEFORE ME this 7<sup>th</sup> day of December 2021 A.D.



Jina Johnson  
NOTARY PUBLIC



CV2021-691(L)

FILED CERTIFICATE OF EXAMINING PHYSICIAN/PSYCHOLOGIST

STATE OF MISSISSIPPI

We, Dr. Milton Hobbs and Sharon Upton, ACNP do hereby

certify that on the 3<sup>rd</sup> day of December, 2021, we conducted a

thorough mental and physical examination of Matthew Reardon of

Lafayette County, Mississippi, and that it is our opinion that said person (is) (is not)

suffering from mental illness, more particularly described as Bipolar & delusional

manifested by:

☒ grossly disturbed behavior/faulty perceptions, and poses a substantial likelihood of physical harm:

☒ by recent threats or attempts to harm self or others.

☒ by failure to provide necessary care for self.

- and -

☒ requires treatment to prevent further disability or deterioration.

Said person (is) (is not) in need of observation, diagnosis, and treatment through:

☒ Inpatient Treatment/Hospitalization ☐ Court Ordered Outpatient Services at Communicare

Facts supporting these findings include: Mr Matthew Reardon is a 34 year old male with a history of mental illness requiring inpatient treatment. HE WAS AT THE North MS State Hospital 7/2021 & he quit taking his psychiatric medications At the time of discharge. He repeats himself frequently. He is very preoccupied with ongoing legal cases. Inpatient treatment is recommended At this time.

So certified this 8 of December, 2021.

M. Hobbs, MD

Physician/Psychologist Signature

Sharon Upton, ACNP

Physician/Psychologist Signature